Court of Appeals
of the State of New York

APL-2022-00189

THE PEOPLE OF THE STATE OF NEW YORK,
Respondent,

–against–

ANTHONY BLUE,
Defendant-Appellant.

NOTICE OF MOTION FOR LEAVE TO APPEAR AS AMICUS CURIAE AND AFFIRMATION IN SUPPORT

Sungso Lee
Philip Desgranges
THE LEGAL AID SOCIETY
Counsel for Proposed Amicus Curiae
49 Thomas Street, 10th Floor
New York, New York 10013
slee@legal-aid.org

Tel: (212) 577-3300

Dated: July 8, 2024, New York, N.Y.

NOTICE OF MOTION

PLEASE TAKE NOTICE, that pursuant to the attached Affirmation of Sungso Lee, Esq., and the proposed amicus curiae brief, dated July 8, 2024, The Legal Aid Society will move this Court at 20 Eagle Street, Albany, New York, 12207, on July 22, 2024, for an order granting this motion for leave, pursuant to this Court's Rule of Practice § 500.23(a)(1), to appear as amicus curiae in the above captioned case, to file the proposed amicus curiae brief in support of the Defendant-Appellant.

Dated: July 8, 2024, New York, N.Y.

Respectfully submitted,

Sungso Lee

Philip Desgranges

THE LEGAL AID SOCIETY

49 Thomas Street, 10th Floor

New York, New York 10013

Tel: (212)577-3300

slee@legal-aid.org

Counsel for Proposed Amicus Curiae

TO: Clerk of Court, New York State Court of Appeals, 20 Eagle Street, Albany, New York 12207.

Hon. Alvin Bragg, New York County District Attorney, Attn: Philip Tisne, Esq., Appeals Bureau, One Hogan Place, Room 854, New York, NY 10013, Attorneys for Respondent.

Caprice R. Jenerson, Esq., Office of the Appellate Defender, Attn: David Bernstein, Esq., 11 Park Place, Suite 1601, New York, NY 10007, Attorneys for Defendant-Appellant.

AFFIRMATION IN SUPPORT OF MOTION FOR LEAVE TO APPEAR AS AMICUS CURIAE

SUNGSO LEE, an attorney admitted to practice law in the courts of New York, affirms the following to be true under penalty of perjury:

1. I am an attorney for The Legal Aid Society ("Legal Aid") and counsel for the proposed amicus curiae in this matter.

2. Pursuant to this Court's Rule of Practice 500.23(a)(1), Legal Aid requests permission to appear as amicus curiae in the above captioned case.

3. This case asks how this Court should determine when the search of a cell phone is executed under CPL 690.30 and whether suppression is warranted when law enforcement fail to execute a timely search. This case, therefore, raises a question of first impression for this Court. This Court's ruling will affect thousands

of future criminal cases, including cases in which Legal Aid is likely to represent the defendant or appellant.

Statement of Interest of Proposed Amicus Curiae

4. Legal Aid has provided free legal services to low-income New York City residents since 1876. As the primary public defender in New York City, Legal Aid provides representation to hundreds of thousands of low-income New Yorkers arrested and accused of crimes in all five boroughs and, thus, has a strong interest in ensuring that the police lawfully search a person's property and that remedies are available when the police conduct an unlawful search.

5. Legal Aid regularly represents clients arrested in the same manner as the Appellant, both at the trial and appellate levels. Legal Aid attorneys spend thousands of hours a year litigating suppression issues, among them issues similar to those presented in this case. Legal Aid is committed to promoting fairness within the legal system and protecting New Yorkers' rights. To that end, Legal Aid has a vested interest in the development of the law relating to suppression and its application as a remedy for violations of statutory and constitutional rights.

Proposed Brief of Amicus Curiae

6. Amicus respectfully seeks leave to file the proposed brief of amicus curiae, a copy of which is included with this submission as Exhibit A.

7. In the proposed brief, amicus argues that the police may not execute a search outside the statutory ten-day deadline, regardless of whether the warrant includes "deemed executed at the time of issuance" language, and that the fruits of such an untimely search must be suppressed.

8. In support of its position, amicus raises three arguments. First, amicus argues that CPL 690.30 is clear and unambiguous, and it makes plain that the search (or execution) is a separate act from the issuance of the warrant. As a result, the First Department's ruling conflicts with the statute's plain text and must be rejected.

9. Second, amicus argues that this Court should hold that, when a cellphone is already in police custody, the search warrant is "executed" when the actual search of the phone's data has begun. That reading of the CPL's plain text both protects the rights of New Yorkers, as the Legislature intended, and accounts for the practical realities of searching a cellphone.

10. Finally, amicus argues that this Court should hold that the fruits of an untimely search in violation of CPL 690.30 must be suppressed, consistent with the legislative intent behind the law and the numerous court decisions that have ordered suppression.

11. The proposed brief satisfies the criteria of this Court's Rule of Practice 500.23(4) because it "identif[ies] . . . arguments that would otherwise escape the

Court's consideration" and because it "would be of assistance to the Court." The brief explains why the Criminal Procedure Law precludes courts from deeming a search warrant executed upon the warrant's issuance, how this Court should define the "execution" a search warrant of a phone already in police custody, and why suppression is warranted when law enforcement fail to execute a search warrant within the CPL's time limit.

Disclosure Statement

12. Pursuant to this Court's Rule of Practice 500.1(f), Legal Aid discloses that it is a non-profit 501(c)(3) organization and does not have subsidiaries or affiliates.

13. No party's counsel contributed content to the proposed brief or participated in its preparation in any other manner.

14. No party or party's counsel contributed money that was intended to fund the preparation or submission of the proposed brief.

15. No other person or entity contributed money that was intended to fund the preparation or submission of the proposed brief.

Service

16. Service of this motion, affirmation, and proposed brief were made by overnight mail on Respondent and on Appellant on July 8, 2024. The Affidavit of Service is attached to this Affirmation as Exhibit B.

Respectfully submitted,

Sungso Lee
Philip Desgranges
THE LEGAL AID SOCIETY
Counsel for Proposed Amicus Curiae
Dated: July 8, 2024, New York, N.Y.